

Court No. - 39

Case :- WRIT - C No. - 30401 of 2022

Petitioner :- Mohammad Aslam

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Deepak Kashinath Dubey

Counsel for Respondent :- CSC,Udit Chandra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Sri Udit Chandra, learned counsel for the respondents has pointed out that the description of respondent no. 5 in the array of parties is incorrect.

In view of above, learned counsel for the petitioner prays for and is permitted to make necessary correction / incorporation in the array of parties during the course of the day.

Heard Sri Deepak Kashinath Dubey, learned counsel for the petitioner, Sri Udit Chandra, learned counsel for the respondents-Electricity Department and perused the record.

The petitioner is raising the dispute with regard to the computation of electricity charges pertaining to the connection taken by him.

The remedy before the petitioner is to approach respondent no. 5 namely Executive Engineer concerned by filing objection invoking the provisions of paragraph 6.5 of Electricity Supply Code, 2005.

For the aforesaid, we **dispose of** the present writ petition with observation that the petitioner shall file appropriate objection invoking the provisions of paragraph 6.5 of Electricity Supply Code, 2005 before the respondent no. 5 namely Executive Engineer concerned raising all his grievances within a period of two weeks from today along with certified copy of this order.

In case, such an objection is filed within the time given above, the Executive Engineer concerned shall be under obligation to take an expeditious decision, in accordance with law, dealing with all points of objections, preferably, within a period of four weeks from the date of receipt of the objection.

For a period of two months or till the decision is taken by the Executive Engineer concerned, whichever is earlier, the impugned recovery certificate dated 27.10.2021 shall be kept in abeyance.

In case of default of filing objection within the time given above, it is open to the respondents to proceed against the petitioner, in accordance with law.

Order Date :- 3.11.2022

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